MATTHEWS TICHAONA KUNAKA (N.O)
(In his capacity as the Executor Dative of the Estate of the Late Ephraim Kunaka)
versus
CHIPO EVANGELISTA GUDZA (nee Kunaka)
and
BERITA MADIYE (nee Kunaka)
and
SETH RUNYARARO KUNAKA
and
BRIAN KUNAKA
and
MASTER OF THE HIGH COURT OF ZIMBABWE N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 20 January & 18 March 2026

Admin of Estates-Provisions Order

A Muchandiona, for the applicant
A Mazombwe, for the 2nd defendant

MAXWELL J: Applicant is the executor in the estate of the Late Ephraim Kunaka who died on the 17th November 1997. Applicant, first and second respondent are children of the Late Ephraim Kunaka whilst the third and fourth respondents are grandchildren of the deceased. The estate of the Late Ephraim Kunaka was registered under DR 1211/21. Applicant and first to fourth respondents are beneficiaries of the estate. They are supposed to inherit in equal shares from all assets of the deceased estate. The only asset in the deceased estate is Stand number 3525 Mbare.

Applicant submitted that between May and June 2025 he approached all the beneficiaries of the estate with a proposal that the estate property be sold by private treaty to enable the estate to meet its expenses and ensure all the beneficiaries get maximum benefits out of it. All beneficiaries except the second respondent consented to the sale of the property. Applicant expressed the view that second respondent is opposed to the sale of the property because she and

first respondent have been collecting rentals from tenants at the property and using part of the rentals for their own benefit. Also, that the second respondent's son is occupying the property without paying rentals since the deceased's demise in 1997.

Applicant applied to the fifth respondent for consent to sell the property. He was advised to approach this court as there was no consensus from all the beneficiaries. Applicant stated that he needed his share of the estate property to enable him to pay medical bills.

He stated that the minimum price of the property is $15 000.00. He proposed that all the beneficiaries of the estate be paid the net proceeds from the sale in equal shares less estate administration expenses.

All the consenting beneficiaries deposed to affidavits signifying their consent to the sale of the property. The affidavits are annexures to the application.

Second respondent opposed the application. She raised a preliminary issue to the effect that the application is defective for non-compliance with the peremptory provisions of s 120(2) of the Administration of Estates Act [*Chapter 6:01*] (the Act). She stated that the Application ought to have been accompanied by an affidavit from the fifth respondent, the Master of the High Court. She argued that if fifth respondent declined to depose to the affidavit, applicant ought to have approached this court on a separate cause of action against fifth respondent's refusal to depose to the affidavit.

On the merits, second respondent submitted that the application is a fund raising project more that anything else. She disputed that the sale is motivated by the need to defray estate expenses. She pointed out that applicant approached the court in his capacity as executor but pleaded personal interests when he stated that he needs his share to cover medical expenses. She submitted that the applicant's induce influence negated the consent of the other beneficiaries. She express doubt about the authenticity of the affidavits from other beneficiaries.

Second respondent disputed that she was collecting rentals from the property. She stated that it was a family arrangement for her son to stay on the property on a caretaker basis after he had taken care of his grandparents when they were sick. She stated that in a family meeting her uncle had declared her the sole beneficiary on account of the renovations she made on the property. She stated that no one objected. She further stated that she renovated the property after the demise of their father using her own savings.

She averred that the applicant is the one collecting the rentals and using them for his own benefit. According to her, applicant had always wanted to dispose of the property even before the estate was registered. She asserted that all due processes must be followed before the Master's consent to sell for the purpose of distribution is issued.

In answer applicant stated that fifth respondent is supposed to be neutral in the discharge of his duties and he cannot depose to an affidavit in support of the cause of one of the parties to an estate dispute. He averred that fifth respondent choose neutrality, and the application is not defective. He disputed that the application is his fund raising project and submitted that it was necessitated by the disagreement among the beneficiaries of the estate on how the sole asset of the estate should be distributed. He stated that on registering the estate in 2021 all the beneficiaries were in agreement that the property be sold and the net proceeds shared equally among them. In his view second respondent backtracked on the agreement for reasons only known to herself. He pointed out that the fifth respondent or the court is empowered to authorise the sale of estate property before the liquidation and distribution account has been filed. This is in terms of the amended s 120 of the Administration of Estates Act [*Chapter 6:01*].

Applicant disputed exerting induce influence to the other beneficiaries to induce their consent to the sale. He insisted that second respondent is collecting rentals from the tenants at the property. He stated that second respondent's son occupies a kitchen at the property whilst the other tenants occupy the dinning and other rooms. Applicant disputed that second respondent's son took care of his grandparents when they were sick. He stated that he was the one who took care of them during their sickness.

Applicant pointed out that the fact that second respondent never lodged a claim when he advertised for creditors and debtors of the estate exposes the falsity of her claim that she renovated the house. He stated that he built a 3 roomed cottage at the property after the death of their father and second respondent stayed in that cottage for 15 years when she had marital problems. He pointed out that all beneficiaries were given the opportunity to buy out the others to take over the property but no one took up the offer. He persisted with his prayer.

Applicant and first to fourth respondents submitted heads of an argument on the preliminary issue.

The fifth respondent submitted a report in which he stated.

> "4. In terms of s 10 of the Admin of Estates Amendment Act No 3 of 2024 the Master is not compelled to file an affidavit in every case. The Master retains a discretion to file a report or affidavit where the record necessitates clarification or factual explanation from the office.
> 5. In the present case, the documents filed in the estate were deemed by this office to be sufficiently clear for the court to make a determination without the need for a supporting affidavit from the Master. We therefore exercised discretion not to depose to an affidavit."

On the 10th of October 2025 the parties argued on the preliminary point raised by the second respondent to the effect that the application is defective as there is no affidavit from the Master in compliance with s 120(2) of the Administration of Estates Act [*Chapter 6:01*]. On the 12th of December 2025, judgment number HH 805/25 was issued. The said judgment dismissed the preliminary point and the matter was set down for argument on the merits.

Mr *Muchandiona* submitted that the grounds raised by the second respondent in opposition to the grant of the authority to sale the property are not permissible grounds at law to defeat the application. The two grounds are firstly that second respondent alleged that she was awarded the property by an uncle and secondly that she renovated the property. Ms *Mazombwe* submitted that the second respondent is advocating for the winding up of the estate in a proper way. Further, that she has been insisting on a proper distribution account to be drawn up and submitted to the Master stating the shares each beneficiary will receive. She believes she is entitled to a bigger share as she renovated the property and therefore should be compensated for the cost of renovation.

Section 120 of the Administration of Estates Act [*Chapter 6:01*] regulates the sale of property otherwise than by auction. Subsection (3) thereof provides;

> "(3) At the hearing of the application, if it appears to the judge that no good reason exists against the grant to the executor of the authority concerned the judge shall grant the provisional order, whereupon the executor shall proceed in terms of subsection (4):
> Provide that the judge shall refuse to grant the provisional order if there is produced to him or her an affidavit by any person having an interest in the estate showing that (in the judge's opinion) there is good reason not to grant to the executor the authority concerned."

The sole question for determination in terms of s 120(3) of the Administration of Estates Act [*Chapter 6:01*] is whether the second respondent has shown a good reason for me not to grant to the executor the authority concerned. In her opposing affidavit second respondent raised a number of issues. Firstly, she alleged that the application is merely a fund raising by the applicant. This was disputed on the basis that the application was necessitated by disagreements among the beneficiaries on how the property should be distributed. The fact that other

beneficiaries consented to the sale while second respondent objected is confirmation that the beneficiaries are not *ad idem*.

Second respondent disputed that the sale of the property was necessitated by the need to defray estate expenses and obligations. She however does not suggest how the estate expenses should be paid. Applicant stated that the Master's fees are due. None off the beneficiaries proposed how these should be met.

Second respondent also stated that the application was premature as the liquidation and distribution account for the estate is yet to be filed and /or approved by the fifth respondent. The legal basis for the submission was not stated. Mr *Muchandiona* submitted that the sale can be authorised before the submission or approval of the liquidation and distribution account. Section 120 of the Administration of Estates Act [*Chapter 6:01*] simply refers to a written application. It does not state the requirement to first submit a liquidation and distribution account.

Second respondent stated that at a family meeting, her uncle, Tichaona Kunaka, told everyone that she should be the sole beneficiary of the house on account of the renovations she made on the property and no one objected. She did not attach any confirmatory affidavits from either Tichaona Kunaka or any other member of the family who was present at the meeting. The fact that the other beneficiaries deposed to affidavits supporting the sale of the property shows that the beneficiaries do not support second respondent's claim.

Second respondent stated that she renovated the property after the death of their father. She does not state the nature of the renovations made. She did not adduce any evidence on the cost of the renovations. In any event, once a person dies, it is only the executor who is authorised to deal with a deceased person's property. Second respondent does not explain why she took it upon herself to interfere with a deceased estate property before the legal process was finalised. Moreover, the fact that she feels entitled to compensation for the renovations is not a good reason to stall the sale of the property.

On the basis of the above, I am not persuaded that there is a good reason for not granting the executor the authority to sale the property otherwise than by auction.

The application therefore succeeds. The provisional order will be issued allowing the applicant to sell stand Number 3525 Mbare, Harare by private treaty for a minimum price of USD 15000.00.

MAXWELL J:……..

Danziger and Partners, applicant's legal practitioners
M D Muchada Legal Practice, second respondent's legal practitioners